

Court No. - 3

Case :- WRIT - C No. - 13640 of 2022

Petitioner :- Arvind Kumar @ Arvind Sahu

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jawahar Lal Maurya

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard Shri Jawahar Lal Maurya, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri N.K. Tiwari, learned counsel for the respondent nos.3 and 4.

2. This writ petition has been filed praying for the following reliefs :

"i) a writ, order or direction in nature of certiorari quashing the impugned recovery citation dated 28.08.2019 issued by respondent no.2 against the petitioner as well as demand notice dated 12.12.2018 issued by respondent no.4.

ii) a writ, order or direction in nature of mandamus directing the respondent no.4 to withdraw the assessment order passed against the petitioner after filing final report dated 19.03.2019 and accepted by the Special Court vide order dated 12.03.2022, as per provision of paragraph no.8.2(x) (h) of U.P. Supply Code 2005."

3. Learned counsel for the respondent nos.3 and 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.4 within four weeks from today

alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 24.5.2022

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